

25TRCV01782 25TRCV01782

County: los-angeles

Division: Civil Law and Motion

Department: B

Hearing date: 2026-08-10

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Case Number: 25TRCV01782 Hearing Date: August 10, 2026 Dept: B

Moving Parties: Attorney Brian Cohen and

Knight Law Group, LLP for plaintiff Viola Antonini

Responding Party: None

Motion to Be Relieved

as Counsel

The Court

considered the moving papers.

RULING

The

motion is DENIED WITHOUT PREJUDICE.

BACKGROUND

On June

2, 2025, plaintiff Viola Antonini filed a complaint

against Volkswagen Group of America, Inc. for violations of Song-Beverly

Act violations and against Walter Timmons Enterprises, Inc. for negligent

repair as to a 2023 Volkswagen Tiguan purchased on

March 26, 2023.

On

March 17, 2026, plaintiff filed a request for dismissal as to Walter Timmons

Enterprises, Inc.

On

July 7, 2026, the Court granted defendant's motions to compel plaintiff to produce her vehicle for inspection and to appear for deposition, within fifteen days.

Trial

is scheduled for September 22, 2026.

LEGAL

STANDARD

The

court has discretion to allow an attorney to withdraw, and such a motion should be granted provided that there is no prejudice to the client and it does not disrupt the orderly process of justice.

See *Ramirez v. Sturdevant*

(1994) 21 Cal. App. 4th 904, 915; *People*

v. Prince (1968) 268 Cal. App. 2d 398.

CRC

Rule 3.1362 (Motion to Be Relieved as Counsel) requires (1) notice of motion and motion to be directed to the client (made on the Notice of Motion and Motion to be Relieved as Counsel—Civil form (MC-051)); (2) a declaration stating in general terms and without compromising the confidentiality of the attorney-client relationship why a motion under Code of Civil Procedure section 284(2) is brought instead of filing a consent under Code of Civil Procedure section 284(1) (made on the Declaration in Support of Attorney's Motion to Be Relieved as Counsel—Civil form (MC-052)); (3) service of the notice of motion and motion and declaration on all other parties who have appeared in the case; and (4) the proposed order relieving counsel (prepared on the Order Granting Attorney's Motion to Be Relieved as Counsel—Civil form (MC-053)).

DISCUSSION

Plaintiff Viola Antonini's counsel, Knight Law Group, LLP, seeks to be relieved as counsel.

Counsel Brian Cohen states in his declaration that there has been a breakdown in the attorney client relationship and that the client

continues to be unresponsive. Counsel

states that counsel has reached out to the client several times via email and phone during various points in the litigation process and have yet to receive a response. As to service, the box at

3.a.(1) is checked, stating that "Attorney has personally served the client with copies of the motion papers filed with this declaration."

The Court finds that the notice of motion is

defective. Under para. 2.a. the date of

hearing is listed as "Feb, 2026."

Further, confusingly, on the one hand, counsel states that the "client

continues to be unresponsive" and, on the other hand, declares that the client was personally served with the motion papers.

Yet, on July 28, 2026, plaintiff's counsel filed a declaration of

reasonable diligence indicating that a process server attempted to serve plaintiff seven times without success.

Thus, it appears that the client was not served with the motion papers

or that the client's address was confirmed as current. Further, the proposed order is missing the properly checked boxes at paras. 3 and 5.

The motion is DENIED WITHOUT PREJUDICE.

ORDER

The

motion is DENIED WITHOUT PREJUDICE.

Moving

counsel is ordered to give notice of this ruling.